

IN THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY

PRC Appeal No. 36/2025

M/S Moosa Jan & Co.
Through its authorized representative Hamayoun Khan S/o Moosa Jan bearing CNIC
No. 54401-0414217-5, Office at 192-C, Samungli Housing Scheme, Quetta.

.... Appellant

Versus

1. Government of Balochistan through its Chief Secretary.
2. Irrigation Department through its Secretary.
3. Executive Engineer, Irrigation Department, Quetta
4. Grievance Redressal Committee through its Chairman, Chief Engineer, Irrigation Department Quetta.
5. M/S Al Sunny Construction Company.

.... Respondents

Quorum

- | | |
|---------------------------------|----------------------|
| 1. Habib Ur Rehman Jamot. | Chairman PRC |
| 2. Mubashir Ali Khan (FCIPS) | Member PRC |
| 3. Engr Junaid Shah | Member PRC |
| 4. Engr. Iftikhar Ahmed Mir | Technical Member PRC |
| 5. Abdul Wahab Bulledi Advocate | Private Member PRC |

APPEAL UNDER RULE-56-A OF THE BPPRA RULES AGAINST TSE
No. 252608825223

For the Appellant:

Mr. Hamayoun Khan, Authorized Representative.

For the Respondents No. 1-4.

Mr. Noor Muhammad Mandokhail, Executive Engineer, Irrigation
Department, Balochistan
Mr. Qurban Ali Jatui, Chief Engineer, Irrigation Department,
Balochistan

For Respondent No. 5.

Called, absent.

1. BRIEF FACTS

The Appellant submitted a bid for the project titled "Construction of Dam at Sara Khulla, District Quetta" advertised through Tender Notice PRQ No. 801/25-08-2025. The Tender Notice requires bidders to furnish evidence of "Similar Nature of Work." The Appellant submitted documents in respect of three dam-related projects previously executed. However, the Procuring Agency declared the Appellant ineligible on the ground that he lacked experience pertaining specifically to a "Gravity Dam," though this expression did not appear anywhere in the Tender Notice or the tender documents.

The Appellant approached the Complaint Redressal Committee, which failed to decide the matter within the prescribed time, leading to the filing of this appeal.

2. PRAYER OF THE APPELLANT

The Appellant seeks:

- i). Setting aside of his disqualification as unlawful and contrary to the published tender conditions;
- ii). Restoration of his bid; and
- iii). Any relief deemed appropriate in the interest of justice and fair competition.

3. FINDINGS OF THE COMMITTEE

27/11
The record unequivocally shows that the Appellant was declared ineligible solely on the basis of lacking "Gravity Dam" experience. Upon specific query, the Procuring Agency conceded that the term "Gravity Dam" was not included in the Tender Notice or bidding documents. Its reliance upon technical specifications within the Bill of Quantities to impose an additional eligibility criteria was not supported by any published condition.

The law governing Public Procurement obligates Procuring Entities to remain strictly confined to the criteria disclosed in the Tender Notice. A bidder cannot be disqualified on the basis of an undisclosed, unstated, or subsequently introduced condition, as such conduct is inconsistent with the principles of fairness, competition, and transparency.

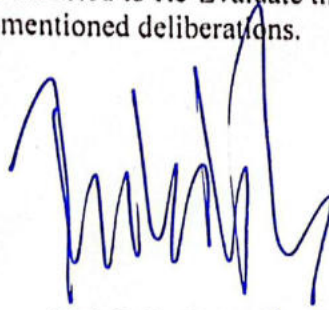
The Appellant fulfilled the disclosed requirement of "Similar Nature of Work" by submitting documentary evidence of three completed dam projects. The Procuring Agency's act of importing a new and more restrictive criteria amounts to a material deviation from its own published conditions.

Such deviation compromises the integrity of the procurement process, renders the evaluation exercise inherently defective, and affects the equal footing upon which all bidders were required to compete.

4. DECISION

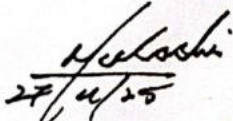
For the reasons recorded above and in the exercise of jurisdiction conferred under Rule 56(A) of the Balochistan Public Procurement Rules, 2014, the Committee holds as follows:

1. The Appeal is allowed.
2. The Appellant's disqualification, having been founded upon a criteria not disclosed in the tender Notice is declared void and of no effect.
3. The Procuring Agency is directed to Re-Evaluate the bid of the Appellant in accordance with the BPP Rule 35 and the above-mentioned deliberations.



Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

27/11/2025.



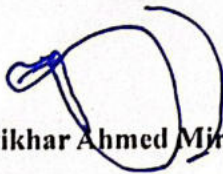
Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

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Iftikhar Ahmed Mir

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Abdul Wahab Bulledi

Member
Procurement Review Committee
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